

# HOUSE . . . . . No. 81

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## The Commonwealth of Massachusetts

PRESENTED BY:

*Steven S. Howitt*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to artificial intelligence disclosure.

PETITION OF:

| NAME:                   | DISTRICT/ADDRESS:  | DATE ADDED:      |
|-------------------------|--------------------|------------------|
| <i>Steven S. Howitt</i> | <i>4th Bristol</i> | <i>1/14/2025</i> |

# HOUSE . . . . . No. 81

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By Representative Howitt of Seekonk, a petition (accompanied by bill, House, No. 81) of Steven S. Howitt relative to artificial intelligence disclosures. Advanced Information Technology, the Internet and Cybersecurity.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE HOUSE DOCKET, NO. 4788 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to artificial intelligence disclosure.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           The General Laws, as appearing in the 2022 Official Edition, are hereby amended by  
2   inserting after Chapter 93L the following new chapter:-

3           CHAPTER 93M. Massachusetts Artificial Intelligence Disclosure Act

4           Section 1. For the purposes of this chapter, the following words shall have the following  
5   meanings, unless the context clearly requires otherwise:

6           “Artificial intelligence” shall mean computerized methods and tools, including but not  
7   limited to machine learning and natural language processing, that act in a way that resembles  
8   human cognitive abilities when it comes to solving problems or performing certain tasks.  
9   Artificial intelligence may be referred to as “AI” throughout this chapter.

“AI-generated content” shall mean image, video, audio, print or text content that is substantially created or modified by a generative artificial intelligence system such that the use of the system materially alters the meaning or significance that a reasonable person would take away from the content.

“Generative artificial intelligence system” shall mean any system, tool or platform that uses artificial intelligence to generate or substantially modify video, audio, print or text content.

“Metadata” shall mean structural or descriptive information about data such as content, format, source, rights, accuracy, provenance, frequency, periodicity, granularity, publisher or responsible party, contact information, method of collection, and other descriptions

Section 2. Each generative artificial intelligence system used to create audio, video, text or print AI-generated content within the commonwealth shall include on or within such content a clean and conspicuous disclosure that meets the following criteria: (i) a clear and conspicuous notice, as appropriate for the medium of the content, that identifies the content as AI-generated content, which is to the extent technically feasible, permanent or uneasily removed by subsequent users; and (ii) metadata information that includes an identification of the content as being AI-generated content, the identity of the system, tool or platform used to create the content, and the date and time the content was created. A violation of this section shall be punishable in the same manner as provided in Chapter 93A of the General Laws, as so appearing.

Section 3. Any person located within the commonwealth using a generative artificial intelligence system to create audio, video, text or print AI-generated content, or repurposing such content, shall be prohibited from removing any notice or disclosure, as provided in section 2. A

31 violation of this section shall be punishable by a fine of not less than \$500 for a first offense and  
32 \$1,000 for each subsequent offense.

33 Section 4. The Office of Consumer Affairs and Business Regulation, as provided in  
34 Chapter 24A of the General Laws, shall be responsible for the enforcement of this chapter and  
35 may establish any rules or regulations it deems necessary to carry out the obligations of this  
36 chapter.